

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 10, 2026
8:30 a.m./1:30 p.m.

5. MICHAELA JOHNSON V. MATTHEW JOHNSON

22FL0137

On July 15, 2026, Respondent filed a Request for Order (RFO) asking the court to adopt the arbitration decision and enter judgment. It was served on Petitioner on August 10, 2026, however there was no Notice of Tentative Ruling served. This matter is dropped from calendar due to lack of proper service.

On July 29, 2026, Petitioner filed a document entitled Request Hearing Re: Arbitration Award Matters. This follows her July 24th filing of two ADR-106 forms seeking to vacate the arbitration award. Petitioner did not utilize the FL-300 form, which is required pursuant to California Rule of Court, rule 5.92(B), as such, her request is dropped from calendar.

On August 10, 2026, Petitioner filed an RFO seeking to reassign Minor's Counsel. It was served on Respondent the same day however Petitioner failed to serve the required blank FL-320 and the Notice of Tentative Ruling. Furthermore, the court is weary of the veracity of the Proof of Service for the FL-300 as a portion of the listed documents are handwritten, in what appears to be Petitioner's handwriting, and it is unclear if the additional text was added before or after the document was signed. Additionally, there is no Proof of Service on Minor's Counsel. Given the defects in service, this matter is dropped from calendar.

Petitioner filed a Responsive Declaration to Request for Order on August 10, 2026. It was served on Respondent the same day.

On August 19, 2026, the court received a letter from Minor's Counsel indicating that he has a conflict and is unable to serve as Minor's Counsel in the present matter. He has asked that the position be reassigned.

In response to Mr. Dosh's August 19, 2026 letter, Mr. Dosh is excused from his position as Minor's Counsel in this matter. The court is assigning Rebecca Esty-Burke to act as Minor's Counsel moving forward.

On August 21st, Petitioner filed a document entitled "Supplemental Declaration Re: Matters Set Sept 10, 2026 Hearings (RFO Final Judgment, Petition to Vacate, Minors [sic] Counsel Vacatur [sic]). It was served on all parties the same day.

TENTATIVE RULING #5: RESPONDENT'S JULY 15, 2026 RFO IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE. PETITIONER'S JULY 20, 2026 REQUEST FOR HEARING IS DROPPED FROM CALENDAR DUE TO FAILURE TO UTILIZE THE

LAW & MOTION TENTATIVE RULINGS

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REQUISITE FL-300. PETITIONER'S AUGUST 10, 2026 RFO IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE. IN RESPONSE TO MR. DOSH'S AUGUST 19, 2026 LETTER, MR. DOSH IS EXCUSED FROM HIS POSITION AS MINOR'S COUNSEL IN THIS MATTER. THE COURT IS ASSIGNING REBECCA ESTY-BURKE TO ACT AS MINOR'S COUNSEL MOVING FORWARD.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.